

The 123 Agreement Will Prevail

Once the US Congress approves, the 123 Agreement, not Hyde, will control the deal's implementation



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Many Indians may be puzzled by the elaborate and complex process that has to be completed before the United States-India civilian nuclear deal gets off the ground. This process, however, is prompted by the need to change the erstwhile American policy—reflected in the Atomic Energy Act of 1954—to take into account the current cooperation between India and the US on nuclear energy and the overall strategic partnership between Washington and New Delhi. The 1954 Act and the underlying American policy provided that the US will not cooperate even in peaceful nuclear matters with any state (except for the original members of the nuclear weapons club) that has manifested any desire to pursue a nuclear weapons programme.

The Henry J. Hyde Act, which has led to so much of controversy in India, was necessary to amend the 1954 Act by establishing a legal regime that would allow nuclear trade with India. With the Hyde Act, Congress provided a statutory framework within which the President can negotiate with states that might otherwise be ineligible for assistance, with some of the Hyde Act's provisions binding on the President and some not. Under the US legal system, the President has both a constitutional right and an obligation to take care that the law is faithfully executed. In carrying out this function, the Executive interprets statutes by examining the language Congress chooses to use. A number of factors are considered in the course of this analysis, including the placement of this language in the statute—is the language in the operational sections or is it in the beginning of a statute, which typically lays out hortatory statements—as well as the precise wording—does the language say the President *shall* or does it say the President *may*?

When he signed the Hyde Act into law in December 2006, President George Bush stated that he would not follow portions of the Act that intruded upon his plenary constitutional prerogatives and would, therefore, treat certain sections as advisory. This practice of using signed statements has been attacked by the Bush Administration critics, who question its constitutionality and assert that the Administration has done so more often than its predecessors. On the basis of my historical research, I believe this criticism is baseless; numerous presidents made use of the signing statements, going back to the early years of the American Republic. This practice is also entirely constitutionally sound. Because the

Constitution trumps any statute, the President has both the right and the duty to ensure that the relevant constitutional requirements are met. Accordingly, the Executive Branch endeavours to construe and apply statutes in a manner that, whenever possible, renders them compliant with the Constitution; to the extent that a given statutory provision cannot be reconciled with the constitutional strictures, the President is obliged not to give it effect. The signing statements merely inform Congress and the public of how the President intends to proceed in this area.

Operating within the statutory framework of the Hyde Act and taking into account the fact that Congress cannot limit the President's power in certain areas, the Executive Branch then negotiated with India what is known as the 123 Bilateral Agreement India. While there have been some allegations that the 123 Agreement is inconsistent with the Hyde Act, this is not the view of the Executive Branch. Indeed, as far as the White House is concerned, the 123 Agreement is consistent with the Hyde Act, when properly construed, and merely fleshes out the details of the US-India nuclear cooperation.



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Once India fulfils the preconditions that have been agreed upon, e.g., the IAEA safeguards, and the ban on nuclear trade is lifted by the Nuclear Suppliers Group, the 123 Agreement is to be approved or disapproved by an up and down vote in the Congress, without providing Congress the opportunity to modify the Agreement. It is far better for India to have an Agreement that is blessed by Congress. This is because congressional approval makes it more difficult to change in the future and provides New Delhi with greater certainty. In contrast, a purely executive agreement could

always be changed by the next President.

There is also some controversy in India about whether the Hyde Act will be superseded by the 123 Agreement. This is wrong terminology, as it implies there is a disharmony between the two documents. The proper legal position is that the 123 Agreement builds upon the Hyde Act. Moreover, once Congress approves the 123 Agreement, then the Agreement will delineate the specific rights and responsibilities of the US and India as the prevailing law that governs and controls the deal's implementation.

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